

Infectious Diseases Act, 1964

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 3

Infectious Disease Act, 2020 (1963)

Royal Seal and Publication Date

2020.11.16 (1963 February 27)

Amending Acts

1. Infectious Disease (First Amendment) Act, 2029 (1972) 2029.6.5 (1972 September 21)
2. Act to Amend Some Nepal Acts, 2048 (1991) 2049.1.8 (1992 April 20)
3. Animal Health and Animal Services Act, 2055 (1998) 2055.4.6 (1998 July 22)
4. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.1.7 (2009 April 20)
5. Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075 (2018) 2075.11.19 (2019 March 3)

Act No. 28 of the year 2020 (1963)

An Act Made to Provide for the Prevention of Infectious Diseases

Preamble: Whereas, it is desirable to provide for the eradication or prevention of any infectious disease that has broken out or is likely to break out in Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009). or any part thereof, so that such disease does not take a severe form,

Therefore, His Majesty King Mahendra Bir Bikram Shah Dev, with the advice and consent of the Rastriya Panchayat, has enacted this Act. 1. Short Title, Extent, and Commencement: (1) This Act shall be called the "Infectious Disease Act, 2020 (1963)."

(2) This Act shall apply throughout Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009)..

(3) This Act shall come into force immediately. 2.

Power to Make Special Arrangements: Amended by the First Amendment. (1) If any infectious disease in humans breaks out or spreads, or is likely to break out or spread, throughout Nepal or in any part thereof removed by the Animal Health and Animal Services Act, 2054 (1998). amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009)., the Government of Nepal may take necessary actions to eradicate or prevent such disease and may issue necessary orders applicable to the general public or any group of persons. (2) The Government of Nepal may, for the eradication or prevention of any infectious disease in humans that has broken out or spread or is likely to break out or spread removed by the Animal Health and Animal Services Act, 2054 (1998)., appoint any authority and delegate necessary powers to make necessary arrangements. (3) Without prejudice to the generality of sub-section (1) or (2), the Government of Nepal may issue necessary orders for the inspection and control of passengers traveling on foot or by any means of conveyance, who are brought or taken removed by the Animal Health and Animal

Services Act, 2054 (1998)., and, if there is suspicion that such removed by the Animal Health and Animal Services Act, 2054 (1998). passengers are infected with any infectious disease, the employee deployed for inspection may isolate such removed by the Animal Health and Animal Services Act, 2054 (1998). passenger in hospitals or other places, or bring or take them in any manner, or even order inspection and control over their travel. 2A.

Power of Province to Make Special Arrangements: Inserted by the Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075 (2018). (1) If any infectious disease breaks out or spreads, or is likely to break out or spread, throughout a province or any part thereof, the provincial government may take necessary actions to eradicate or prevent such disease and may issue necessary orders applicable to the general public or groups of persons. (2) The provincial government may, for the eradication or prevention of any infectious disease that has broken out or spread, or is likely to break out or spread, within the province, appoint any authority and delegate necessary powers to make necessary arrangements. (3) Without prejudice to the generality of sub-section (1) or (2), the provincial government may issue necessary orders for the inspection of passengers traveling on foot or by any means of conveyance, and, if there is suspicion that such passenger is infected with any infectious disease, the employee deployed for inspection may isolate such passenger in hospitals or other places, or bring or take them in any manner, or even order inspection and control over their travel. (4) Notwithstanding anything elsewhere written in this section, if the Government of Nepal has already issued an order pursuant to Section 2, the provincial government shall not issue an order pursuant to this section, and the provincial government shall also implement such order. (5) Information of an order issued by the provincial government pursuant to this section shall be immediately given to the relevant ministry of the Government of Nepal. 3. Penalty: (1) A person who contravenes this Act or an order given under this Act shall be liable to imprisonment for up to 1 month or a fine of up to Rs. 100/- or both. (2) A person who obstructs persons authorized under this Act in their work shall be liable to imprisonment for up to 6 months or a fine of up to Rs. 600/- or both. 4. Authority for Action and Adjudication: The authority to take action and adjudicate offenses committed under this Act shall vest in amended by the Act to Amend Some Nepal Acts, 2048 (1991). the Chief District Officer. 5. Protection for Acts Done in Good Faith: No suit or any other legal action shall lie against any person authorized under this Act for any act done in good faith in the discharge of their duty.